

National Institute of Standards and Technology Streamlined Award Closeout Initiative

The U.S. Department of Commerce, National Institute of Standards and Technology (NIST) acquisition portfolio includes expired awards (i.e., purchase orders, contracts, task orders, delivery orders, Blanket Purchase Agreements (BPA's) and BPA calls that have long past the period of performance or final delivery date of these awards, and the time frame prescribed in Federal Acquisition Regulation (FAR) Subpart 4.8 for closing out the files for those awards has elapsed. To clear the backlog, NIST is implementing a streamline quick process that will enable closeout of the files for those awards in an efficient and cost-effective manner.

The backlog reflected in the attached spread sheet represents awards with \$0 to \$300 balances. The balance represents a significant burden to legacy acquisition and financial systems, but also impedes NIST's efforts to appropriately archive expired awards and to prepare for transition and migration to modernized financial and procurement systems. By using the process described in this notice, NIST hopes to significantly reduce the backlog of expired awards and enable NIST to expeditiously complete closeout of the associated files.

To facilitate the closeout of the awards identified in the attached spreadsheet, this notice serves as a Release of Liability of the Government; a copy of this notice will be in the contract files to reflect the release of liability.

NIST is not aware of any known outstanding invoices for these awards. If you have any questions, regarding this notice, please forward to Biji John at Biji.John@nist.gov.

Notwithstanding NIST's intention to expeditiously closeout the award files for the actions identified in the attached spreadsheet, contractor rights are protected under 41 U.S.C. chapter 71 Contract Disputes (commonly known as the Contract Disputes Act of 1978), which establishes procedures for filing claims against Federal Government contracts. Normal FAR Subpart 4.8 contract file retention requirements will apply after the awards are closed.